

An Act

ENROLLED HOUSE
BILL NO. 3849

By: Roberts, Hill, and Wolfley
of the House

and

Coleman of the Senate

An Act relating to the Oklahoma Juvenile Code; amending 10A O.S. 2021, Sections 2-10-101 and 2-10-102, as amended by Section 11, Chapter 347, O.S.L. 2024 (10A O.S. Supp. 2025, Section 2-10-102), which relate to the Oklahoma Mentoring Children of Incarcerated Parents Program; modifying purpose; modifying who may receive mentoring services; modifying applicant requirements; modifying time period in which the Commission shall award grants for specific purpose; and providing an effective date.

SUBJECT: Oklahoma Juvenile Code

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 10A O.S. 2021, Section 2-10-101, is amended to read as follows:

Section 2-10-101. A. The Oklahoma Commission on Children and Youth shall establish the Oklahoma Mentoring Children of Incarcerated Parents Program.

B. The purpose of the Oklahoma Mentoring Children of Incarcerated Parents Program is to provide effective intervention services through ~~one-to-one~~ mentoring relationships to children of incarcerated parents ~~who either:~~

~~1. Are in the custody of the Office of Juvenile Affairs and currently placed outside the home; or~~

~~2. Have been identified by the Office of Juvenile Affairs as and to children~~ at risk of becoming involved in the juvenile justice system.

SECTION 2. AMENDATORY 10A O.S. 2021, Section 2-10-102, as amended by Section 11, Chapter 347, O.S.L. 2024 (10A O.S. Supp. 2025, Section 2-10-102), is amended to read as follows:

Section 2-10-102. ~~1.~~ A. The Oklahoma Commission on Children and Youth shall issue a request for proposals on or before July 1, 2024, and July 1 of every third year thereafter for which the Oklahoma Mentoring Children of Incarcerated Parents Program is funded, seeking applications to administer the Oklahoma Mentoring Children of Incarcerated Parents Program.

~~2.~~ B. The Office of Management and Enterprise Services shall work in conjunction with the Commission to coordinate a competitive bid process.

~~3.~~ C. The Commission, in coordination with the Office of Management and Enterprise Services, shall review the applications for compliance with the established requirements.

~~4.~~ D. Entities eligible to submit applications to administer the Oklahoma Mentoring Children of Incarcerated Parents Program shall be limited to nonprofit organizations or programs which are exempt from taxation pursuant to the provisions of Section 501 (c) (3) of the Internal Revenue Code, 26 U.S.C., Section 501 (c) (3) and which otherwise meet the requirements set forth in ~~paragraph 5~~ subsection E of this section.

~~5.~~ E. The Commission may approve an application that meets the requirements set forth in this subsection and as established by the Commission. The approved applicant or applicants shall provide ~~one~~ one or more mentoring services to children of incarcerated parents ~~who are in the custody of the Office of Juvenile Affairs and currently placed outside the home, or have been identified by the Office of Juvenile Affairs as~~ and to children at risk of becoming involved in the juvenile justice system. The selected applicant or applicants shall:

~~a. currently serve~~

1. Serve youth ages ~~6-18,~~

- ~~b. have six (6) through eighteen (18);~~
- 2. Have a statewide or regional presence₇
 - ~~e. currently provide one-to-one;~~
- 3. Provide mentoring services to children of incarcerated parents₇
 - ~~d. have;~~
- 4. Have served children of incarcerated parents for ~~five (5)~~ three (3) years or more₇
 - ~~e. have;~~
- 5. Have rigorous volunteer application and screening processes₇
 - ~~f. have;~~
- 6. Have established child safety policies and procedures₇
 - ~~g. measure;~~
- 7. Measure performance outcomes via multiple tools₇
 - ~~h. have five (5);~~
- 8. Have three (3) years or more of performance outcome data₇
 - ~~i. provide;~~
- 9. Provide ongoing safety training and diversity training for program staff₇
 - ~~j. have an established working relationship with the Office of Juvenile Affairs₇~~
 - ~~k. set;~~
- 10. Set match-retention-rate goals₇
 - ~~l. have; and~~
- 11. Have experience working with high-risk populations₇ ~~and~~

- ~~m. deliver contracted services at a cost no greater than One Thousand Five Hundred Dollars (\$1,500.00) per mentor-mentee match.~~

~~6. On or before July 1, 2012, and each July 1 thereafter for which the Oklahoma Mentoring Children of Incarcerated Parents Program is funded, the Office of Juvenile Affairs may forward applications that the Office of Juvenile Affairs has determined meet the requirements of this section to the Commission.~~

F. On or before November 1, ~~2012~~ 2024, and ~~each November~~ every third year thereafter for which the Oklahoma Mentoring Children of Incarcerated Parents Program is funded, the Commission shall award, through a competitive bid process, ~~one a grant to one applicant to provide one-to-one~~ or grants for the purpose of providing mentoring services to children of incarcerated parents ~~who either are in the custody of the Office of Juvenile Affairs and currently placed outside the home or have been identified by the Office of Juvenile Affairs as~~ and to children at risk of becoming involved in the juvenile justice system.

~~7. In addition to the grant funding, the Commission shall be authorized to provide other appropriate assistance to the selected applicant.~~

~~8.~~ G. The Commission shall be authorized to promulgate rules and establish procedures necessary to implement the provisions of this act.

~~9.~~ H. The Office of Management and Enterprise Services shall work with the Commission to implement the provisions of this act.

SECTION 3. This act shall become effective November 1, 2026.

Passed the House of Representatives the 23rd day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 28th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____